

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: August 11, 2026 TIME: 9:00 A.M. and 9:01 A.M.

To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

FOR APPEARANCES: Department 1 is fully open for in-person hearings. The Court strongly prefers **in-person** appearances for all contested law and motion matters. For all other hearings, appearances must be **in-person or by video**. Department 1 uses Unicorn Digital Courtroom (UDC) platform. Please click on this link if you need to appear remotely and then scroll down to the link for Department 1: <https://santaclara.courts.ca.gov/online-services/remote-hearings>. This system requires advance registration with a case number and hearing date. **Telephonic appearances are prohibited, unless permitted by the Court.** (Local Rule 5). If you must appear virtually, you must use video.

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LAW AND MOTION TENTATIVE RULINGS

9:00 A.M.			
LINES 1 & 7	23CV414045	Yesenia Zavaleta vs Volkswagen Group of America, Inc. et al	Motion for Attorney's Fees and Enhancer (Line # 1) and Motion to Strike Costs (Line #7); Scroll down to Line 1 for Tentative Ruling on Lines 1 and 7.
LINE 2	24CV440065	LVNV Funding LLC vs Sairoop Dasaraju	Motion to Enter Judgment Pursuant to Default Scroll down to Line 2 for Tentative Ruling.
LINE 3	24CV451853	Douglas Gabriel vs Donna Cutuli	Motion to Deposit Bond Amount; Cancel; and Exonerate Bond; Discharge Liability; Attorney's Fees and Cost; and Dismissal Scroll down to Line 3 for Tentative Ruling.
LINES 4-5	25CV457823	Joey Mowry vs Daljeet Sagoo	Motion to Compel (Line # 4) and Motion: Admissions Deem Admitted (Line # 5) OFF CALENDAR. On August 3, 2026, Plaintiff/moving party withdrew the motions and filed a dismissal of the entire action with prejudice.
LINE 6	25CV468852	Arthur Hearn vs Ford Motor Company et al.	Petition to Compel Arbitration Scroll down to Line 6 for Tentative Ruling.
LINE --	25CV478112	Katherine Zulliger et al vs Ford Motor Company et al.	Demurrer VACATED. On June 9, 2026, the moving party WITHDREW the demurrer.

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9:01 A.M.			
LINE 1	26CV493370	Emmanuel Haro vs Albertson's LLC	Motion to Withdraw as Attorney Parties to appear.

9:00 A.M.

Calendar Lines # 1 & 7

Case Name Yesenia Zavaleta vs Volkswagen Group of America, Inc. et al

Case No. 23CV414045

Motion for Attorney's Fees and Enhancer (Line # 1) and Motion to Strike Costs (Line #7)

Before the Court is the Plaintiff's Motion for Attorney's Fees and Cost (Line # 1) and Defendant Volkswagen's Motion to Strike Cost (Line # 7). Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

LINE # 1: MOTION FOR ATTORNEY'S FEES AND COST

I. BACKGROUND

A. BRIEF FACTUAL BACKGROUND

This case stems from a Complaint under the Song-Beverly Act that was filed on December 12, 2022 regarding Plaintiff Yesenia Zavaleta's ("Zavaleta") 2018 Audi A5 vehicle, vehicle identification number WAUTNAF56JA000598 (Compliant and Declaration of Kevin Jacobson, ¶ 38). The case was transferred from the Superior Court of the State of California, County of San Francisco. The parties filed a notice of settlement on July 9, 2025, as on July 3, 2025, Plaintiff Zavaleta accepted the defense offer to compromise under Code of Civil Procedure section 998. (Exhibit A of Declaration of Sivasangary).

B. RELEVANT PROCEDURAL BACKGROUND

Before the court is Plaintiff Zavaleta's motion for attorney's fees, costs and enhancer that was filed on November 2, 2026. The motion was accompanied by a proof of service indicating electronic mail service to defense counsel on November 24, 2025.

Defendant Volkswagen Group of America, Inc. ("Volkswagen") filed an opposition paper on July 22, 2026.

The Court has carefully reviewed the following: Plaintiff's notice of motion and memorandum of points and authorities (totaling 23 pages), Declaration of Kevin Jacobson and attached Exhibits 1-16 (totaling 107 pages); Defendant's opposition (total 13 pages); Declaration of Oviya Sivasangaray and attached Exhibits A-G in support of defense's opposition (totaling 101 pages); Reply brief (totaling 12 pages); supplemental Declaration of Kevin Jacobson and attached Exhibits 1-6 (totaling 54 pages); memorandum of costs filed on November 7, 2025 (totaling 29 pages); proofs of services; and the pleadings.

II. LEGAL STANDARD

A. ATTORNEY'S FEES AND COST

Pursuant to Code of Civil Procedure section 1033.5(a)(1), a prevailing party is entitled to recover its attorney's fees when authorized by contract, statute, or law. (*See also*, Civ. Code § 1717(a)). "A successful party means a prevailing party, and [a party] may be considered prevailing parties for attorney's fees purposes if they succeed on any significant issue in litigation which achieves some of the benefit the parties sought in bringing suit." (*Bowman v. City of Berkeley* (2005) 131 Cal.App.4th 173, 178).

The Song-Beverly Act provides, "[i]f the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code § 1794(d)).

Thus, the statute includes a “reasonable attorney’s fees” standard. The attorney bears the burden of proof as to “reasonableness” of any fee claim. (Code Civ. Proc., § 1033.5(c)(5)). This burden requires competent evidence as to the nature and value of the services rendered. (*Martino v. Denevi* (1986) 182 Cal.App.3d 553, 559). “Testimony of an attorney as to the number of hours worked on a particular case is sufficient evidence to support an award of attorney fees, even in the absence of detailed time records.” (*Ibid.*).

B. CALCULATION FOR FEES

In determining a reasonable attorney fee, the trial court considers the lodestar, i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 36). The lodestar may then be adjusted based on factors specific to the case in order to fix the fee at the fair market value of the legal services provided. (*Ibid.*) The lodestar amount “may be adjusted by the court based on factors including (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award.” (*Bernardiv. County of Monterey* (2008) 167 Cal.App.4th 1379, 1399, citing *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132). The purpose of any lodestar and the increase thereto “is intended to approximate market-level compensation for such services” and is entirely discretionary. (*Id.*). “The purpose of a fee enhancement is not to reward attorneys for litigating certain kinds of cases, but to fix a reasonable fee in a particular action.” (*Weeks v. Baker & McKenzie* (1998) 63 Cal.App.4th 1128, 1171-72).

“Under the lodestar adjustment methodology, the trial court must initially determine the actual time expended and then ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. Factors to be considered include, but are not limited to, the complexity of the case and procedural demands, the attorney skill exhibited and the results achieved. The prevailing party and fee applicant bears the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and were reasonable in amount. It follows that if the prevailing party fails to meet this burden, and the court finds the time expended or amount charged is not reasonable under the circumstances, then the court must take this into account and award attorney fees in a lesser amount.” (*Mikhaeilpoor v. BMW of N. Am., LLC* (2020) 48 Cal.App.5th 240, 247 [cleaned up]). “The courts repeatedly have stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom, and this includes the determination of the hourly rate that will be used in the lodestar calculus. In making its calculation, the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation to which that skill was applied, and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases.” (*569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal.App.5th 426, 437, citations omitted).

“In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (*Lunada Biomedical v. Nunez* (2014) 230 Cal.App.4th 459, 488, citing *Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564). The court will exercise its discretion in determining if the Plaintiff’s attorney’s fees request is reasonable by considering the following factors: the nature of litigation, its difficulty, the amount involved, the skill required in handling the matter, the attention given, the success or failure, and the resulting judgment. (*Melnyk v. Robledo* (1976) 64 Cal.App.3d 618, 623).

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III. ANALYSIS

A. ATTORNEY'S FEES

Plaintiff seeks fees in the amount of \$31,112.00 for 77.4 hours for nine attorneys, who worked on the matter. Plaintiff submits its billing records for nine Quill & Arrow LLP attorneys: Kevin Jacobston, Gregory Sogoyan, Kayla Corrick, Joshua Kohanoff, Angilbert Loho, Donald Mahnke, Sarah Pfeffer, Ellen Zakharian, and Derek Chipman who worked on the matter with hourly rates ranging from \$350.00 - \$550.00. (Exhibit 16 attached to Declaration of Jacobson, ¶¶ 2-37 and 97).

Plaintiff avers that Volkswagen denied all liability and asserted twenty-six affirmative defenses, which required extensive efforts to reach a settlement. (Declaration of Jacobson ¶¶ 60-61). Plaintiff sets forth the initial set of written discovery propounded, meet-and-confer efforts, notice of depositions, defended the deposition of the plaintiff, prepared objections to a vehicle inspection, motion to compel further responses and ex parte applications, preparation of a joint statement of the case, and exhibit list. (*Id.*, at ¶¶ 62-90). Plaintiff counsel emphasizes that its work resulted in a higher settlement value of the case, and notes that on September 7, 2023, defense conveyed a 998 offer to compromise for \$45,000.00, but by June 27, 2025 after litigation, the defense doubled its offer and conveyed a 998 offer to compromise in the amount of \$90,000.00, which the plaintiff ultimately accepted. (*Id.*, at ¶¶ 95-96). Plaintiff asserts that substantial work was required to prosecute a claim on behalf of an individual consumer against a large corporation. (*Id.*, at ¶ 94). Plaintiff avers that the Quill & Arrow LLP undertook the case on a contingency basis, which presented a significant amount of on the grounds that if there was not a successful resolution of the case, plaintiff's counsel would have lost all costs and fees incurred on the matter. (*Id.*, ¶ 100).

Defendant Volkswagen opposes the motion on three main grounds: (1) timeliness; (2) unreasonable fees based on a standard lemon law case; and (3) excessive, inflated, boilerplate, duplicate, unnecessary, and unreasonable billing. First, Volkswagen asserts that the plaintiff's motion is untimely and cites to the Offer to Compromise agreement, which requires that plaintiff needs to file a motion for fees within 60 days after payment, which was wired on August 1, 2025. (Declaration of Sivasangary ¶¶ 5-8; Exh. A-B). Defense avers the motion needed to be filed by September 30, 2025. (*Id.*, ¶ 8). Defendant asserts that under the agreement, that if no fees motion was timely filed, defense would pay \$5,000.00 for fees and cost, and that on December 12, 2025 Volkswagen paid the plaintiff \$5,000.00 in fees and costs. (*Id.*, ¶ 9; Exh. C).

Second, defense also challenges the fees requested by the plaintiff as excessive and emphasizes that from inception to resolution, no excessive discovery was conducted (e.g. no vehicle inspection), no mediation, no expert discovery, and no trial preparation. (*Id.*, ¶ 10). Defense avers that the case is not novel or difficult and did not require specialized skill or expertise. (*Id.*). Defendant asserts that the plaintiff submitted template and boilerplate pleadings, including the Complaint, civil cover sheet, and summons in this case and argues the same standard form was filed in similar lemon law cases. (*Id.*, ¶ 12; Exh. D).

Finally, defense challenges the plaintiff's billing records as excessive, inflated, duplicate, unnecessary, and unreasonable and cites to multiple attorney's working on the same motions, including the motion for fees. (*Id.*, ¶ 13-15; Exh. F). Volkswagen also opposes the request for \$4,000.00 in anticipated billing to review the opposition, file a reply, and attend a hearing. Defense also argues that the number of hours billed are excessive and that the five different attorney's with rates ranging from \$350.00 to \$550.00 per hour are inflated and unnecessary given that this was a standard lemon law case with nothing unique about the motions filed by the plaintiffs. (*Id.*, ¶ 16-17; Exh. G).

Upon review, the Court finds that attorney's fees are warranted in this matter, but finds that the 77.4 hours of nine attorneys' fees time unwarranted in a straightforward Song-Beverly claim. The Court will not reduce the hourly rates requested for the attorneys, but reduces the number of total hours submitted on the grounds that the number of

hours are inflated, excessive, duplicative, clerical, unnecessary, and thus unreasonable. From the time period of October 14-2022 to November 20, 2025 as submitted in Exhibit 16 to the Declaration of Jacobson, the court reduces a total of 26.5 hours (Exhibit 16, p. 1-5 reduction of 3.8 hours; p. 6-13 reduction of 5.9 hour; p. 14-16 reduction of 5.5 hours; and p. 18-19 11.3 hours). The adjusted hours awarded is 50.9.

Plaintiff counsel also seeks \$4,000.00 in attorney's fees for reviewing defendant's opposition brief, preparing a reply brief, and attending the hearing. The Court notes that a reply brief and supplemental Declaration of attorney Jacobson was submitted. Plaintiff seeks 10.9 hours for two attorneys Joshua Kohnoff and Derek Chipman's work on preparing the memorandum of costs, preparing the fees motion, and preparing a proposed order. The Court notes that no proposed order was submitted and the amount of hours submitted are inflated, duplicative, and unreasonable. Any time for appearance for the hearing is prospective. The Court will award two hours for the reply brief at attorney Kohnoff's hourly rate of \$425.00 for a total of \$850.00.

B. MULTIPLIER

Plaintiff seeks a 1.25 multiplier enhancement, which amount to \$7,778.00. (Declaration of Jacobson, ¶ 99).

The plaintiff has not met its burden of showing that a multiplier is merited under *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138. In applying a multiplier for contingent risk, "the trial court should consider whether, and to what extent, the attorney and client have been able to mitigate the risk of nonpayment. . ." (*Id.*).

There is no evidence that this case involved anything novel, difficult, or required exceptional skill. The case appears to be a standard lemon law action.

IV. CONCLUSION

Based on the foregoing, the Plaintiff's motion for attorney's fees is GRANTED, the Court awards fees in the total amount of \$ 21,327.50 with a total hours of 50.9 hours awarded (compromised of a \$ 20,477.50 base lodestar based on a reduction of 26.5 hours and \$850.00 in preparing and filing a reply brief).

The plaintiff's request for a 1.25 multiplier enhancer is DENIED.

The Court ORDERS that upon proof that the defendant paid \$5,000.00 in fees and cost, that amount is to be offset in light of these motions for fees and costs to preclude double recovery for fees and motions.

The Court will prepare the formal Order.

LINE # 7: MOTION TO STRIKE COST

I. BACKGROUND

A. BRIEF FACTUAL BACKGROUND

This case stems from a Complaint under the Song-Beverly Act that was filed on December 12, 2022 regarding Plaintiff Yesenia Zavaleta's ("Zavaleta") 2018 Audi A5 vehicle, vehicle identification number WAUTNAF56JA000598 (Compliant and Declaration of Kevin Jacobson, ¶ 38). The case was transferred from the Superior Court of the State of California, County of San Francisco. The parties filed a notice of settlement on July 9, 2025, as on July 3, 2025, Plaintiff Zavaleta accepted the defense offer to compromise under Code of Civil Procedure section 998. (Exhibit A of Declaration of Sivasangary).

B. RELEVANT PROCEDURAL BACKGROUND

Before the court is the Defendant Volkswagen Group of America, Inc. (“Volkswagen”)’s motion to strike the plaintiff’s memorandum of costs that was filed on December 19, 2025. The motion was accompanied by a proof of service indicating electronic mail service to Plaintiff’s counsel on that same day.

Plaintiff Zavaleta filed an opposition on July 30, 2026.

The Court has carefully reviewed the following: Defendant’s notice of motion to strike and memorandum of points and authorities (totaling 9 pages), Declaration of Oviya Sivasangaray and attached Exhibits A-C (totaling 44 pages); Plaintiff’s Opposition (totaling 19 pages); memorandum of costs filed on November 7, 2025 (totaling 29 pages); proofs of services; and the pleadings.

II. LEGAL STANDARD

California Rules of Court, rule 3.1700(a)(1) provides, “A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal.” The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case.” (California Rule of Court, rule 3.1700(a); see also *Hydratec, Inc. v. Sun Valley 260 Orchard & Vineyard Co.* (1990) 223 Cal.App.3d 924, 927–928). The Song-Beverly Act allows a prevailing party to recover all expenses, including those not traditionally allowed. (See *Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112).

Under Code of Civil Procedure section 1032, the prevailing party is entitled to recover costs. Section 1033.5, subdivision (a) sets forth a list of allowable costs. Section 1033.5, subdivision (b) lists costs that are not allowable. If the items on a memorandum of costs appear proper on their face, the prevailing party has produced prima facie evidence the costs were reasonable and necessary (*Seaver v. Copley Press, Inc.* (2006) 141 Cal.App.4th 1550, 1557; *Doe v. Department of Children & Family Services* (2019) 37 Cal.app.5th 675, 693), and the burden is on the party seeking to tax costs to show otherwise. (*Sanford v. Rasnick* (2016) 246 Cal.App.4th 1121, 1128; *Benach v. County of Los Angeles* (2007) 149 Cal.App.4th 836, 855 [if the claimed costs are expressly allowable, “ ‘the burden is on the objecting party to show them to be unnecessary or unreasonable’ ”]). If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. (*Ladas v. California State Automotive Assoc.* (1993) 19 Cal.App.4th 761, 773-774). On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. (*Ibid.*). Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion. (*Ibid.*). However, because the right to costs is governed strictly by statute, a court has no discretion to award costs not statutorily authorized. (*Id.*). Discretion is abused only when, in its exercise, the court “exceeds the bounds of reason, all of the circumstances being considered.”(*Ibid.*). In ruling upon a motion to tax costs, the trial court’s first determination is whether the statute expressly allows the particular item and whether it appears proper on its face, if so, the burden is on the objecting party to show the costs to be unnecessary and unreasonable. Where costs are not expressly allowed by statute, the burden is on the party claiming the costs to show that the charges were reasonable and necessary.

III. ANALYSIS

Here, Plaintiff counsel filed a memorandum of costs on November 7, 2025 seeking a total of \$6,431.12 for filing and motions fees, jury fees, deposition costs, process service fees, electronic filing service fees, and court appearance professionals and courtesy copies. (Memorandum of Costs). The memorandum of costs included exhibits with breakdown for costs along with invoices.

Defendant filed this motion to strike costs and avers that the plaintiff is not entitled to cost based on untimely as the memorandum of costs was filed 38 days after the 60 day deadline set forth under the Offer to Compromise agreement, and the issue being moot based on Volkswagen's payment of \$5,000.00 to resolve costs. (Declaration of Sivasangary, ¶4 and 7-8). Defendant avers that it already paid for costs and any additional fees and costs needed to be filed by September 30, 2025 and thus Plaintiff's filing of the memorandum of costs on November 7, 2025 is barred as untimely. (*Id.*). In the alternative, the defendant seeks that the \$6,431.12 amount of costs sought by the plaintiff should be reduced by \$2,034.58. (Motion, p. 3). Defendant asserts that the plaintiff expended unnecessary filing of pleadings and associated fees and unsubstantiated deposition costs that are unrecoverable. (*Id.*). Specifically, Defendant Volkswagen objects to four costs listed in the memorandum of costs: (1) jury fees in the amount of \$150.00 listed as item no. 2 as defense argues that the case never proceeded to trial; (2) deposition costs in the amount of \$5,114.63 listed as item no. 4 as unsupported and unjustified. Defense challenges whether these fees were reasonably necessary to conduct litigation and whether the amount is reasonable. Defendant avers that the plaintiff fails to provide additional information and invoices relating to the stated deposition charges and the requested amount is excessive and unsubstantiated and thus seeks a reduction in the amount of \$1,400.00; (3) service of process costs, listed as item no. 5, including for three subpoenas and witness fees letters that were not reasonably necessary to conduct litigation. Defendant emphasizes that the plaintiff never deposed these witnesses and seeks a reduction in the amount of \$229.50; (4) "other" costs listed as item no. 15 in the amount of \$255.08 for courtesy copies and remote appearances that the defense argues were incurred as a convenience and does not qualify as a reasonable recoverable cost. (Motion, p. 7-8).

Plaintiff asserts that the defendant's motion is untimely under Rule of Court, rule 3.1700(b). (Opposition, p. 5). Plaintiff asserts that items memorandum of costs was served on November 7, 2025, and defendant hand until November 26, 2025 to file its motion. The motion was rejected by the clerk's office on November 25, 2025, stating that a motion to strike was required and defense then filed its motion on December 9, 2025. (*Id.*). Plaintiff asserts that at the time the defendant filed its motion to strike., defense had not sent the \$5,000.00 in fees and cost pursuant to the agreement. (*Id.*, at p. 6). Plaintiff also argues that the defense fails to meets its burden of showing that the costs sought are unnecessary or unreasonable. (*Id.*, at p. 9). Plaintiff argues that the specific fees that the defense challenges are recoverable as follows: (1) the \$150 jury deposit were posted and nonrefundable, but necessary to preserve the plaintiff's right to jury trial if the case proceeded to trial under Code of Civil Procedure section 631(b); (2) deposition costs for video recording and transcription are authorized costs; (3) the deposition subpoenas on the dealership's person most knowledgeable was necessary and reasonable, whether or not the deposition ultimately occurred or that such testimony is indispensable; and (4) the other costs for courtesy copies and appearance is required and necessary. (Opposition, at p. 9-11). Plaintiff also seeks relief under Code of Civil Procedure section 473(b) for late filing based on mistake, inadvertence, surprise or excusable neglect. (*Id.*, at p. 15). "Plaintiffs' counsel was not aware that all payments had been "made" and when all payments were "made." Plaintiffs, through their counsel, made a mistake as to when the payments under the agreement were made. This mistake was honest and reasonable in light of the circumstances of this case and in light of the fact that Plaintiff did not know the amount of the check VWGoA issued to the lender, when the lender deposited the check, or the status of any overage checks issued by the lender." (*Id.*, at p. 12).

The Court finds the following: (1) the \$150.00 nonrefundable jury deposit fee is reasonable and was necessary if the plaintiff wanted to preserve its right to a jury trial should the case have not reached a settlement agreement. Code of Civil Procedure section 631 ensure the right to trial by jury as declared under the California Constitution, Article I section 16. At least one party on each side demanding a jury trial is required to pay this nonrefundable fee to offset the state's cost of providing a jury trial in civil matters. Further, the nonrefundable jury deposit fee is due at the initial case management conference and no later than a year after filing or at least 25 days before the trial. This cost is reasonable and deemed necessary. The fact that the case did not go to jury trial is not relevant as it is a reasonable and necessary cost to preserve the right to a jury trial should the case proceed to a trial under Code of Civil Procedure

section 1033.5(a)(1). (2) the deposition costs for logistics, processing and electronic files for video recording and transcription for the deposition of defendant's person most knowledgeable Joseph Kanyak dated December 13, 2024 is reasonable and necessary given the type of case under the Song-Beverly Act. Further the second cost for the deposition of plaintiff dated June 6, 2025 is warranted and reasonable. The Court finds this Cost reasonable and recoverable under Code of Civil Procedure section 1033.5(a)(3)(A). (3) The Court finds subpoena notices as a reasonable for preparation of the case under section (a)(4). (4) the other costs for courtesy copies and remote appearance are recoverable under section (a)(1), (14),(15), and (16). Based on the foregoing, the Court will award the costs requested.

IV. CONCLUSION

Based on the foregoing, the Defendant's motion to tax cost is DENIED and costs are awarded in the amount of \$6,431.12.

The Court ORDERS that upon proof that the defendant paid \$5,000.00 in fees and cost, that amount is to be offset in light of these motions for fees and costs to preclude double recovery for fees and motions.

The Court will prepare the formal Order.

Calendar Line # 2

Case Name LVNV Funding LLC vs Sairoop Dasaraju

Case No. 24CV44065

Motion to Enter Judgment Pursuant to Default

I. BACKGROUND

Before the court is a collections case stemming from Plaintiff LVNV Funding LLC ("LVNV") May 29, 2024 Complaint alleging two causes of actions, including breach of contract and money lent, paid or expended against Defendant Sairoop Dasaraju ("Dasaraju"). LVNV acquired the original loan from WebBank and now stands as the debt collector. Defendant Dasaraju filed an answer on September 23, 2024. On October 24, 2024, the parties filed a notice of settlement.

On January 22, 2026, Plaintiff LVNV filed this motion to enter judgment pursuant to the defendant's default under settlement and release agreement under Code of Civil Procedure section 664.6. The motion was accompanied by a proof of service indicating mail service to the debtor/Defendant Dasaraju on that same date.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 29, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court has carefully reviewed the moving papers, including the notice of motion (totaling 3 pages); memorandum of points and authorities (totaling 3 pages); Declaration of Spencer Penuela and attached Exhibits 1-3 (totaling 14 pages); proof of service and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 664.6: “If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.” (Code Civ. Proc., § 664.6).

Strict compliance with the statutory requirements is necessary before a court can enforce a settlement agreement under this statute. (*Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc.* (2002) 103 Cal.App.4th 30, 37). Accordingly, “parties” under section 664.6 means the litigants themselves, not their attorneys. (*Levy v. Superior Court* (1995) 10 Cal.4th 578, 586 (holding “we conclude that the term ‘parties’ as used in section 664.6 means the litigants themselves, and does not include their attorneys of record.”)). Additionally, the settlement must include the signatures of the parties seeking to enforce the agreement, and against whom enforcement is sought. (*J.B.B. Investment Partners, Ltd. v. Fair* (2014) 232 Cal.App.4th 974, 985).

“Section 664.6 was enacted to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit.” (*Weddington Prods., Inc. v. Flick* (1998) 60 Cal.App.4th 793, 809). When ruling on a section 664.6 motion, the trial court acts as a trier of fact to determine whether a settlement has occurred, which is also an implicit authorization for the trial court to interpret the terms and conditions to settlement. (*Id.*) The court may not “create the material terms of a settlement,” and must instead decide on what terms the parties agreed upon. (*Id.*; *Terry v. Conlan* (2005) 131 Cal.App.4th 1445, 1460; *Osumi v. Sutton* (2007) 151 Cal.App.4th 1355, 1360; *Fiore v. Alvord* (1985) 182 Cal.App.3d 561, 565-566). “In acting upon a section 664.6 motion, the trial court must determine whether the parties entered into a valid and binding settlement of all or part of the case. In making this determination, trial judges, in the sound exercise of their discretion, may receive oral testimony or may determine the motion upon declarations alone.” (*Corkland v. Boscoe* (1984) 156 Cal.App.3d 989, 994).

III. ANALYSIS

Here, Plaintiff LVNV asserts that the parties entered into a settlement agreement pursuant to Code of Civil Procedure section 664.6 on October 2, 2024. (Exhibit 1 attached to Declaration of Penuela). The Plaintiff filed a notice of settlement. (Exhibit 2 attached to Declaration of Penuela). The total settlement agreement was for Defendant Dasaraju to pay Plaintiff \$6,325.05 for the account balance. (Declaration of Penuela ¶ 8). Under the stipulation, the defendant should have paid \$3,000.00, but only rendered payments of \$400.00. (*Id.*, ¶6). The agreement also addressed that failure to comply with the payment schedule may result in a default. (Exhibit 1 attached to Declaration of Penuela). The written settlement agreement indicated the total amount, scope, and payment terms of the settlement. The settlement agreement was signed by all of the parties to the agreement and filed with the Court. (*Id.*). On November 24, 2025, Plaintiff sent the defendant a letter seeking payment of the balance and reiterated the terms of the agreement. (Exhibit 3 attached to Declaration of Penuela). Thus, Plaintiff has met its burden.

Plaintiff seeks damages of \$6,325.05, which is the agreed account balance amount from the settlement and the amount stated in its Complaint with a \$400.00 credit for a total outstanding principal of \$5,925.05. (*Id.*). (Declaration of Penuela ¶ 8). Plaintiff seeks costs in the amount of \$387.70 comprised of the following: \$225.00 filing and motion fees, \$5.20 for E-filing, \$147.10 for service processing, and \$10.40 in E-filing. (*Id.*). In total, Plaintiff seeks \$6,312.75. (*Id.*).

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 29, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of

Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

IV. CONCLUSION

Based on the foregoing, and the motion being unopposed, the Court GRANTS the motion to enter judgment in favor of Plaintiff in the amount of \$6,312.75 against Defendant Dasaraju. The Court will prepare the Order.

Calendar Line # 3

Case Name Douglas Gabriel vs Donna Cutuli

Case No. 24CV451853

Motion to Deposit Bond Amount; Cancel and Exonerate Bond; Discharge Liability; Attorney's Fees and Cost; and Dismissal

I. BACKGROUND

This construction defect breach of contract case stems from Plaintiff/Cross-Defendant Douglas Gabriel ("Gabriel") filing a Complaint on November 18, 2024 alleging five causes of actions concerning defects on remodeling work performed at 1942 Abinante Lane, San Jose, California 95124 ("Subject Property."). (Complaint). On May 6, 2025, Plaintiff filed a First Amended Complaint. Defendant/Cross Complainant Donna Cutuli ("Cutuli") filed a Cross-Complaint was filed against Cross Defendant DNG Builders Group LLC ("DNG"). Cross-Complainant alleges that Defendant The North River Insurance Company ("North River") are liable to Cutuli in the full amount of a \$25,000.00 bond. Cross Defendant DNG, the bond principal disputes the Cross-Complainant's claims. North River issued a contractor's licensing bond in the amount of \$25,000.00 (No. 04- CF622534)("Bond"), effective October 4, 2023, with a cancellation date of September 4, 2025 (Declaration of Clair Nail; Exhibit 1).

On January 5, 2026, Defendant Cutuli filed a notice of entry of judgment.

On February 13, 2026, Defendant North River filed this motion to deposition bond amount; cancel and exonerate bond; discharge liability; and for attorney fees and cost; and to be dismissed. The motion was accompanied by a proof of service indicating electronic mail service the plaintiff's counsel and parties on February 12, 2026. Prior to filing the motion, North River met-and-conferred with Cross-Defendant, bond principal, and counsel for all parties about entering a stipulation rather than incurring time and cost for this present motion. Although Cross-Complainant agreed, North River did not receive a response from the bond principal.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 29, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

On February 27, 2026, Defendant Cutuli filed a notice of non-opposition of the North River's motion.

The Court has carefully reviewed the moving papers, notice and memorandum of points and authorities, and Declaration of Andrew Haas (totaling 11 pages); Declaration of Clarisa Nail and attached Exhibit 1; Defendant Cutuli's notice of non-opposition (totaling 2 pages); proof of service; and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 386.5 provides:

Where the only relief sought against one of the defendants is the payment of a stated amount of money alleged to be wrongfully withheld, such defendant may, upon affidavit that he is a mere stakeholder with no interest in the amount or any portion thereof and that conflicting demands have been made upon him for the amount by parties to the action, upon notice to such parties, apply to the court for an order discharging him from liability and dismissing him from the action on his depositing with the clerk of the court the amount in dispute and the court may, in its discretion, make such order.

Code of Civil Procedure section 386.6 provides:

A party to an action who follows the procedure set forth in Section 386 or 386.5 may insert in his motion, petition, complaint, or cross complaint a request for allowance of his costs and reasonable attorney fees incurred in such action. In ordering the discharge of such party, the court may, in its discretion, award such party his costs and reasonable attorney fees from the amount in dispute which has been deposited with the court. At the time of final judgment in the action the court may make such further provision for assumption of such costs and attorney fees by one or more of the adverse claimants as may appear proper.

III. ANALYSIS

Here, Defendant North River seeks the following: award of attorney's fees and cost, order to deposit the full bond penal sum amount in dispute, fully cancel and exonerate the bond and dismiss North River with prejudice from liability upon depositing the bond amount.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 29, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

A. ATTORNEY'S FEES AND COST

Defendant North River seeks attorney's fees in the amount of \$2,743.50 and costs in the amount of \$85.13 under Code of Civil Procedure section 386.6. (Motion, p. 4-5). Counsel Andrew Haas attests to have spent 8.3 hours preparing the moving papers at an hourly rate of \$295.00. (Declaration of Haas, ¶4; Exhibit 1). Mr. Haas also anticipates spending an hour to file any necessary reply brief and appearing for the motion. (*Id.*).

The Court GRANTS awarding attorney's fees in the amount of \$2,448.50 for 8.3 hours of work at the hourly rate of \$295.00. The Court DENIES the request for an additional hour of time amounting to \$295.00 as there was no opposition or reply brief, and an appearance is prospective.

The Court GRANTS the cost of \$85.13 for filing this motion.

B. DEPOSIT

North River avers it has met its requirements under Code of Civil Procedure section 386.5 and asserts that it is merely a shareholder with no interest in the penal sum of the \$25,000.00 bond. (Declaration of Nail ¶ 4). Cross-Complainant DNG was provided notice and the motion is unopposed.

The Court GRANTS the request to deposit the full bond penal sum, \$25,000 less attorney fees and costs of 2,533.63 equals \$22,466.37.

C. DISCHARGE OF LIABILITY UPON DEPOSIT

North River seeks to have the bond be fully cancelled and exonerated upon deposit under Code of Civil Procedure section 995.430 and states that the bond “remains in force and effect until the earliest of the following events . . . (b) The purpose for which the bond was given is satisfied . . .” (Motion, p. 5). On October 4, 2023, North River, License Bond No. 04-CF622534, on behalf of DNG, issued a as bond principal, in the penal sum of \$25,000 with a cancellation date of September 4, 2025. (Declaration of Nail, ¶ 2; Exhibit 1). Defendant Cutuli claims \$25,000.00 in bond, which DNG disputes. (*Id.*, at ¶ 3). North River has no interest in the amounts claimed and asserts it is merely a stakeholder that is willing and ready to deposit the bond, less attorney’s fees and costs. (*Id.*, at ¶ 4). Upon depositing the bond, North River argues that it will have satisfied the purpose for which the bond was given. Thus, North River seeks an order discharging it from liability and being dismissed with prejudice upon depositing the bond amount less fees and cost.

The Court GRANTS the request that upon deposit, North River will be discharged from liability in this matter, and dismissed with prejudice.

IV. CONCLUSION

Based on the foregoing, the Court GRANTS the request for attorney’s fees and cost in the total amount of \$2,533.63 (\$2,448.50 in attorney’s fees and \$85.13 in cost).

The Court GRANTS the request to deposit the full bond penal sum, \$25,000 less attorney fees and costs of 2,533.63 equals \$22,466.37.

The Court GRANTS the request that upon deposit the bond will be exonerated and North River will be dismissed in the matter with prejudice.

Calendar Line # 6
Case Name Arthur Hearn vs Ford Motor Company et al.
Case No. 25CV468852
Petition to Compel Arbitration
I. BACKGROUND
A. BRIEF FACTUAL BACKGROUND
Plaintiff Arthur Hearn (“Hearn”) purchased a 2021 Ford Navigator L (Subject Vehicle) in June 2021 from Future Ford Lincoln of Roseville (“Dealership”). (Complaint at ¶ 7). Plaintiff delivered the Subject Vehicle to Dealership for substantial repair on at least one occasion. (<i>Id.</i> at ¶ 59). Plaintiff alleges that Dealership “breached its duty to Plaintiff to use ordinary care and skill by failing to properly store, prepare, and repair the Subject Vehicle in accordance with industry standards.” (<i>Id.</i> at ¶ 61). Plaintiff sued Dealership and Ford Motor Company in June 2025. The sole cause of action alleged against Dealership is for negligent repair.
B. PROCEDURAL BACKGROUND
On December 11, 2025, Defendant Dealership filed this petition to compel arbitration, based on the Retail Installment Sales Contract (RISC) signed by Plaintiff and Dealership when Plaintiff purchased the Subject Vehicle and stay proceedings. The motion is accompanied by a proof of electronic service on the same date.

On January 31, 2026, the Honorable Shella Deen issued an Order staying the action until a determination the motion to compel arbitration.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 29, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

II. LEGAL ANALYSIS

Defendant maintains that the Federal Arbitration Act (“FAA”) governs the Arbitration Provision based on the language itself and because the agreement affects interstate commerce. (Motion, at p. pp. 5:1-22).

The court in ruling on a petition to compel arbitration, is guided by general principles of California contract law, must first determine whether the parties actually agreed to arbitrate the dispute. *Diaz v Sohnen Enters.* (2019) 34 CA5th 126, 129. The court must determine whether: (1) there was a valid agreement to arbitrate between the parties; and (2) said agreement covers the controversy or controversies in the parties’ dispute. (*Omar v. Ralphs Grocery Co.* (2004) 118 Cal.App.4th 955, 961; *see also, Chiron Corp. v. Ortho Diagnostic Systems, Inc.* (9th Cir. 2000) 207 F.3d 1126, 1130). To determine “whether a valid contract to arbitrate exists,” courts apply “ordinary state law principles that govern contract formation.” (*Davis v. Nordstrom, Inc.* (9th Cir. 2014) 755 F.3d 1089, 1093 [citations omitted]; *Ingle v. Circuit City Stores, Inc.* (9th Cir. 2003) 328 F.3d 1165, 1170).

A party that wishes to pursue arbitration must take active steps to secure that right because an arbitration agreement is not self-executing. (*Fleming Distribution Co. v. Younan* (2020) 49 Cal.App.5th 73, 80-81. A party moving to compel arbitration bears the burden of establishing the existence of a valid agreement to arbitrate and the party opposing the petition bears the burden of proving by a preponderance of evidence, any fact necessary to its defense. (*Banner Entertainment, Inc. v. Superior Court* (1998) 62 Cal.App.4th 348, 356-357).

The party challenging a contractual arbitration provision bears the burden of proving that it is both procedurally and substantively unconscionable. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 126 (*OTO*)). This may be done on a sliding scale, where the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required, and vice versa. (*Id.* at pp. 125-126). Nevertheless, both must be shown. Procedural Unconscionability focuses on oppression or surprise to the “weaker” party based on unequal bargaining power, whereas substantive unconscionability focuses on the terms of the agreement and whether they are overly harsh or one-sided. (*OTO, supra*, 8 Cal.5th at pp. 125-129).

Code of Civil Procedure section 1281.2 provides: “On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate such controversy, the court shall order the petitioner and respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: [¶] The right to compel arbitration has been waived by the petitioner; or [¶] (b) Grounds exist for rescission of the agreement.”

In determining the threshold question of whether an arbitration agreement exists between the parties, the court employs a three-step burden shifting analysis. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755 (*Iyere*); *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060). The party seeking to compel arbitration bears the initial burden of showing an agreement to arbitrate. If that burden is met, the burden shifts to the opposing party to show a factual dispute regarding the agreement’s existence. If the opposing party does so, then the burden shifts back to the proponent of arbitration to show the existence of a valid agreement by a preponderance of the evidence. (*Iyere, supra*, 87 Cal.App.5th at p. 755).

III. ANALYSIS

A. VALID AGREEMENT TO ARBITRATE

The Court finds that there was a valid agreement. Defendant asserts that the plaintiff purchased a 2020 Ford Lincoln Navigator (“Subject Vehicle”) from Future Ford on June 19, 2021. (Declaration of Ihara; Exh. 1). Plaintiff executed the Purchase Agreement titled “**RETAIL INSTALLMENT SALE CONTRACT – SIMPLE FINANCE CHARGE (WITH ARBITRATION PROVISION)**.” (Id. at 1). Plaintiff Hearn is identified as the “buyer” and “you,” and refers to Future Ford as “seller-Creditor” and identifies the Subject Vehicle by its Vehicle Identification Number: 6LMJJ3LT6MEL06996. (Motion, p. 7-8).

Defendant asserts that the Purchase Agreement sets for the arbitration provision on page 7:

ARBITRATION PROVISION

PLEASE REVIEW – IMPORTANT – AFFECTS YOUR LEGAL RIGHTS

EITHER YOU OR WE MAY CHOOSE TO HAVE ANY DISPUTE

BETWEEN US DECIDED BY ARBITRATION AND NOT IN COURT OR
BY JURY TRIAL.

IF A DISPUTE IS ARBITRATED, YOU WILL GIVE UP YOUR RIGHT
TO PARTICIPATE AS A CLASS REPRESENTATIVE OR CLASS
MEMBER ON ANY CLASS CLAIM YOU MAY HAVE AGAINST US
INCLUDING ANY RIGHT TO CLASS ARBITRATION OR ANY
CONSOLIDATION OF INDIVIDUAL ARBITRATIONS.

DISCOVERY AND RIGHTS TO APPEAL IN ARBITRATION ARE
GENERALLY MORE LIMITED THAN IN A LAWSUIT, AND OTHER
RIGHTS THAT YOU AND WE WOULD HAVE IN COURT MAY NOT BE
AVAILABLE IN ARBITRATION. (Exhibit 1 to Declaration of Ihara).

Defendant emphasizes that the agreement broadly sets forth that any claim relating to the Purchase Agreement or any resulting relationship with “third” parties who do not sign this contract could be resolved by binding arbitration, as follows:

Any claim or dispute, whether in contract, tort, statute or otherwise (including the interpretation and scope of this Arbitration Provision, and the arbitrability of the claim or dispute), between you and us or our employees, agents, successors or assigns, which arises out of or relates to your credit application, purchase or condition of this vehicle, this contract or any resulting transaction or relationship (including any such relationship with third parties who do not sign this contract) shall, at your or our election, be resolved by neutral, binding arbitration and not by a court action. (*Id.*).

The Arbitration Provision also states: The Arbitration Provision also states that “[a]ny arbitration under this Arbitration Provision shall be governed by the Federal Arbitration Act (9 U.S.C. § 1 et seq.) and not by any state law concerning arbitration.” (*Id.*).

Plaintiff does not dispute that he signed the RISC when he purchased the Subject Vehicle. Plaintiff signed and acknowledged the following notice of the arbitration provision: “**Agreement to Arbitrate.** By signing below, you agree that, pursuant to the Arbitration Provision on page 7 of this contract, you or we may elect to resolve any dispute by neutral, binding arbitration and not by court action. See Arbitration Provision for additional information concerning the agreement to arbitrate.” (*Id.*, Ex. A at p. 1). The RISC further drew the arbitration provision to

Plaintiffs’ attention through the following disclaimer: “. . . YOU ACKNOWLEDGE THAT YOU HAVE READ ALL PAGES OF THIS CONTRACT, INCLUDING THE ARBITRATION PROVISION ON PAGE 7 OF THIS CONTRACT, BEFORE SIGNING BELOW.” (*Id.*, Ex. A at p. 6). Plaintiff’s signature on those sections of the RISC indicates express assent to the arbitration provision. (See *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 777 [“ ‘ “A party’s acceptance of an agreement to arbitrate may be express, as where a party signs the agreement.” ’ ”]).

Dealership has also properly authenticated the RISC and has met its burden of proving the existence of a valid agreement to arbitrate. “The moving party ‘can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature. Alternatively, the moving party can meet its burden by setting forth the agreement’s provisions in the motion.’ ” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165, internal citations and quotations omitted.). Here, Dealership attached a copy of the RISC signed by Plaintiffs as Exhibit A to the Declaration of Karyn Ihara. Dealership has also set forth the terms of the arbitration provision in the motion itself. (Motion, at pp. 2:21-3:8). In any event, “[f]or purposes of a petition to compel arbitration, it is not necessary to follow the normal procedures of authentication.” (*Gamboa, supra*, 72 Cal.App.5th at pp. 165-166). Dealership has shown a valid agreement to arbitrate.

B. THE SCOPE OF THE ARBITRATION AGREEMENT COVERS PLAINTIFF’S CLAIMS

Defendant avers that Plaintiff’s claims are subject to arbitration under the FAA based on the provisions in the purchase agreement. Ford asserts that the arbitration is valid and enforceable.

Defendant has not waived its rights to arbitrate and there are no other grounds for revocation. The California Supreme Court has identified various factors that are “relevant and properly considered in assessing waiver claims.” (*St. Agnes Medical Center v. Pacific Care of California* (2003) 31 Cal.4th 1187, 1195-1196). Those factors are:

- (1) whether the party’s actions are inconsistent with the right to arbitrate; (2) whether ‘the litigation machinery has been substantially invoked’ and the parties ‘were well into preparation of a lawsuit’ before the party notified the opposing party of an intent to arbitrate; (3) whether a party either requested arbitration enforcement close to the trial date or delayed for a long period before seeking a stay; (4) whether a defendant seeking arbitration filed a counterclaim without asking for a stay of the proceedings; (5) whether important intervening steps [e.g. taking advantage of judicial discovery procedures not available in arbitration] had taken place; and (6) whether the delay affected, misled, or prejudiced the opposing party.

Here, the arbitration provision broadly applies to “[a]ny claim or dispute, whether in contract, tort, statute or otherwise. . . , between you and us. . . , which arises out of or relates to your credit application, purchase or condition of this Vehicle, this contract or any resulting transaction or relationship.” (Declaration of Ihara, Ex. A at p. 7). Plaintiff’s sole cause of action against Dealership is a tort action for negligent repair. Plaintiff and Dealership are the parties to the transaction. Plaintiff’s action relates to the condition of the vehicle, namely the condition of the vehicle following repair by Dealership. That the allegedly negligent repair occurred after the parties signed the RISC is ultimately irrelevant because the arbitration provision states it applies to both “this contract” and “any resulting transaction or relationship” between the parties. Plaintiff’s claim against Dealership is covered by the arbitration provision.

For the avoidance of doubt, however, only Plaintiff’s negligent repair claim against Dealership is subject to arbitration. The remaining breach of warranty and fraud claims against Ford Motor Company are not arbitrable.

because it is not a party to the RISC. (See *Ford Motor Warranty Cases* (2025) 17 Cal.5th 1122, 1126 [rejecting non-signatory manufacturer’s attempt to compel arbitration on a third party and equitable estoppel theory])/ All other issues concerning arbitrability have clearly and unmistakably been delegated to the arbitrator since the RISC provides “the interpretation and scope of this Arbitration Provision and the arbitrability of the claim or dispute . . . shall [] be resolved by neutral, binding arbitration and not by a court action.” (Declaration of Ihara, Exh. A at p. 7). (*First Options of Chicago v. Kaplan* (1995) 514 U.S. 938, 944 [noting that courts should find that the parties agreed to arbitrate arbitrability only where there is clear and unmistakable evidence that they did so, resolving any ambiguity in favor of a finding that the issue is for the court to determine])).

Plaintiff does not object to these arguments. In fact, Plaintiff has not filed any opposition. The failure to timely file an opposition is a basis for the Court to grant the motion, as the Court may construe such non-opposition as a concession that the motion is meritorious. (See *D.I. Chadbourne, Inc. v. Super. Court* (1964) 60 Cal.2d 723, 728, fn. 4; see also Cal. Rule of Court 8.54, subd. (c) [“A failure to oppose a motion may be deemed consent to the granting of the motion.”]). Plaintiff forfeited any argument about the agreement’s existence and scope by not opposing Dealership’s arguments on those points. The party challenging a contractual arbitration provision bears the burden of proving that it is both procedurally and substantively unconscionable. (*OTO, L.L.C., supra*, 8 Cal.5th at 126). Here, Plaintiff Arthur Hearn did not oppose the motion. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 29, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

C. STAY OF ACTION

Dealership requests a stay of the entire action. Plaintiff has sued two entities, Ford Motor Company and Dealership, for different causes of action. Proceeding against both defendants in separate forums carries the risk of rendering inconsistent rulings. As noted above, Plaintiff has not offered any arguments opposing a stay to the entire action. A stay of these proceedings is proper under Code of Civil Procedure § 1281.4 and 9 U.S.C. § 3. The court STAYS this action in its entirety pending the outcome of arbitration.

IV. CONCLUSION

Based on the foregoing, the motion being unopposed, the petition to compel arbitration is GRANTED. The action is STAYED in its entirety pending the outcome of the arbitration. The Court will prepare the formal Order.